

FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 21-02

YSN IMPORTS INC. d/b/a FLAME KING, Complainant

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC., Respondents.

**SCHWALB REPLY DECLARATION
ON MOTION FOR LEAVE TO FILE ANSWER
OUT OF TIME**

EFREM SCHWALB declares that:

1. I am lead counsel for Respondents Feige “Peggy” Oberlander, U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (all three Respondents collectively “Respondents”). I make this reply declaration in further support of Respondents’ motion pursuant to Rule 6(b)(1)(B) for leave to file their answer out of time.

2. On July 7, 2021, the Commission denied Respondents’ motion to dismiss, and ordered that Respondents file their Answer by July 22, 2021. (Dkt. 19 at 8)

3. I inadvertently failed to file an Answer on time, because of the press of other business, including being on trial in a New Jersey arbitration and that my son was married on July 26, 2021. Also contributing to the lateness is that the client was in a remote location with very limited access to a computer.

4. I was finalizing the Answer and was prepared to file it along with the instant motion for leave to file out of time, when on July 28, 2021, Complainant’s counsel emailed:

Dear Mr. Schwalb: As you are aware, the July 7, 2021 order denying UShipper's motion to dismiss the Complaint required an answer or other response to be filed with the FMC by July 22. Please promptly advise as to the status of the response, failing which we will seek an order to show cause to compel a response and/or move forward with default proceedings.

I understood this email to mean that Complainant was consenting to a late filing of the Answer, and would not oppose the instant motion. It is for this reason that I did not confer on the motion, as I understood that consent had been given.

5. The instant motion was filed later that day.

6. I declare under penalty of perjury that the foregoing is true and correct pursuant to 28 U.S.C. 1746.

Dated: August 2, 2021
New York, New York

/s/ Efrem Schwalb
Efrem Schwalb